

The Acting Judges Act, 1867

Source: <https://indiankanoon.org/doc/188168/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[4](#)

[\]](#)

[Union of India - Act](#)

[The Acting Judges Act, 1867](#)

[UNION OF INDIA](#)

[India](#)

[The Acting Judges Act, 1867](#)

[Act 16 of 1867](#)

[Published on 1 January 1867](#)

[Commenced on 1 January 1867](#)

[\[This is the version of this document from 1 January 1867.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[Central Government Act](#)

[The Acting Judges Act, 1867](#)

[THE ACTING JUDGES ACT, 1867](#)

[ACT NO. 16 OF 1867](#)

[\[1st March, 1867.\]](#)

[An Act to authorize the making of acting appointments to certain](#)

[Judicial Offices. 1](#)

[Preamble.- WHEREAS the Governor General of India in Council](#)

[or](#)

[the Local Government, as the case may be, is empowered by](#)

divers
enactments to appoint the Judges of certain Courts 2: And
whereas
it has been doubted whether he or it is empowered to appoint
persons
to act temporarily as such Judges, and it is expedient to remove
such
doubts; It is hereby enacted as follows:-

1.
Power to appoint acting Judges.- In every case in which the Central Government, or the State Government, as the case may be, has power under any Act or Regulation to appoint a Judge of any Court

3
, such power shall be taken to include the power to appoint any person capable of being appointed a permanent Judge of such Court, to act as Judge of the same Court for such time as the Central Government or the State Government, as the case may be, shall direct. Every person so appointed to act temporarily as a Judge of any such Court shall have the powers and perform the duties which he would have had and been liable to perform in case he had been duly appointed a permanent Judge of the same Court.

2.
Certain enactments to be construed as if they contained a clause like section 1 of this Act. Every such Act and Regulation shall be construed as if it contained a special clause to the purport or effect of the first section of this Act.

1. This Act has been declared, by notification under s. 3 (a) of the Scheduled Districts Act, 1874 (14 of 1874), to be in force in the following Scheduled Districts, namely:- The Districts of Hazaribagh, Lohardaga now the Ranchi District, see Calcutta Gazette, 1899, Pt. 1, p. 44). and Manbhum. and Pargana Dhalbhum and the Kolhan in the District of Singhbhum- see Gazette of India--, 1881, Pt. 1, p. 504. This Act has been extended to the new Provinces and Merged States by the Merged States (Laws) Act. 1949 (59 of 1949) and to the States of Manipur, Tripura and Vindhya Pradesh by the Part C States (Laws) Act' 1950 of 1950), s. 2.

2. The words" in the Provinces" were omitted by the A. O. 1950.

3.
The words" in British India" were rep. by the A. O. 1948.

Related AI tags, queries and research notes

Translation